

Court No. - 39

Case :- WRIT - C No. - 6605 of 2016

Petitioner :- Nagendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bindeshwari Prasad Mishra

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

The petitioner is aggrieved by the notice that has been issued by the Executive Engineer of the Dakshinanchal Vidyut Vitran Nigam Limited, Agra Region, Agra requiring the petitioner to deposit the balance amount towards electricity dues.

Though number of submissions have been made by learned counsel for the petitioner to assail the notice, Sri Shrawan Kumar Tripathi, learned counsel appearing for the respondent Corporation has stated that the petitioner has a statutory alternative remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

The petitioner does have an alternative statutory remedy. The Court, therefore, declines to entertain this petition.

The petition is, accordingly, dismissed.

Order Date :- 16.2.2016

M.A. Ansari

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)